

EU/UK Consumer Withdrawal Rights Waiver Policy

Legal & Policies

Effective 11/4/2026

Version 1

EU/UK Consumer Withdrawal Rights Waiver Policy — REACT Studios Corp.

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THIS POLICY IS LEGALLY BINDING. This EU/UK Consumer Withdrawal Rights Waiver Policy ("Waiver Policy") applies exclusively and mandatorily to all consumers located in the European Union ("EU"), European Economic Area ("EEA"), or United Kingdom ("UK") who purchase, subscribe to, or otherwise acquire any digital content, virtual goods, virtual currency, tokens, in-game items, subscriptions, premium features, downloadable content, battle passes, or any other purely digital services or products (collectively, "Digital Purchases") from REACT Studios Corp. ("Company," "We," "Us," or "Our").

This Waiver Policy is supplemental to and incorporated into Our Terms and Conditions, Privacy Policy, and Subscription Services Agreement. In the event of any conflict, the more restrictive provision in favor of the Company shall control.

ALL SERVICES AND PRODUCTS OFFERED BY REACT STUDIOS CORP. ARE 100% DIGITAL. NO TANGIBLE MEDIUM IS INVOLVED IN ANY TRANSACTION.

1. Your Statutory Right of Withdrawal

1.1 General Right

Under EU consumer protection laws — including Directive 2011/83/EU on Consumer Rights (the "Consumer Rights Directive"), as transposed into the national laws of EU Member States, and the Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013 in the United Kingdom — consumers generally have a fourteen (14) calendar day "cooling-off" period during which they may withdraw from a distance contract without providing any reason and without incurring any penalty.

1.2 Complete Statutory Exception for Digital Content

However, EU and UK law provides a **complete and irrevocable exception** to the right of withdrawal for contracts involving the supply of digital content which is not supplied on a tangible medium. This exception applies to all Digital Purchases from REACT Studios Corp., including but not limited to: virtual items, in-game currency, tokens, skins, characters, loot boxes, battle passes, subscriptions, premium memberships, downloadable content, and any other content delivered digitally and immediately to Your Account.

This exception is not a Company policy — it is a statutory provision codified in law. The Company structures all Digital Purchases to fall within this exception.

2. Legal Basis — Article 16(m) of Directive 2011/83/EU

2.1 Conditions for Exception

Pursuant to Article 16(m) of Directive 2011/83/EU (and its UK equivalent), the statutory right of withdrawal does not apply when **all** of the following conditions are met:

- (a) The contract is for the supply of digital content which is not supplied on a tangible medium;
- (b) **You provide prior express consent** for performance and delivery to begin immediately, before the expiry of the fourteen (14) day withdrawal period;
- (c) **You explicitly acknowledge** that You will lose Your right of withdrawal upon the commencement of performance or full delivery of the digital content;
- (d) **The Company provides confirmation** of the contract, Your consent, and Your acknowledgment of the loss of withdrawal rights.

2.2 All Conditions Are Satisfied

All Digital Purchases from REACT Studios Corp. are intentionally and specifically structured to satisfy every condition required under Article 16(m):

- (a) All products and services are purely digital — no tangible medium is involved;
- (b) Your express consent to immediate performance is obtained before purchase completion through the mandatory consent mechanism described in Section 3;
- (c) Your explicit acknowledgment of the loss of withdrawal rights is obtained before purchase completion through the same mandatory consent mechanism;
- (d) Confirmation of the transaction, Your consent, and Your waiver is provided immediately upon purchase as described in Section 5.

2.3 UK-Specific Compliance

For UK consumers, this Waiver Policy complies with Regulation 37 of the Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013, which implements the equivalent exception for digital content contracts. The same conditions and protections described in this Section apply.

3. Mandatory Consent and Waiver Mechanism

3.1 Active Opt-In Requirement

Before completing any Digital Purchase, EU/UK consumers are required to provide explicit, affirmative consent through a **dedicated, mandatory, unchecked-by-default checkbox** on the checkout, subscription, or purchase confirmation page. This checkbox is separate from and in addition to any general acceptance of the Terms and Conditions.

3.2 Checkbox Language

The mandatory checkbox will contain language substantially similar to the following:

"I expressly request that REACT Studios Corp. begin performance and deliver the digital content immediately. I acknowledge and accept that I will lose my statutory 14-day right of withdrawal once the digital content is delivered to or accessed in my Account."

3.3 Purchase Blocking

No Digital Purchase will be processed, completed, or delivered until the EU/UK consumer has actively checked this box. The checkbox is unchecked by default and cannot be pre-selected, auto-filled, or bypassed. Any attempt to circumvent this mechanism will result in the transaction being blocked.

3.4 Additional Consent Actions

In addition to the checkbox, Your affirmative action of clicking "Buy," "Subscribe," "Confirm," "Pay," or any similar transactional button constitutes further express consent to immediate performance and acknowledgment of the loss of withdrawal rights. The combination of the checkbox consent and the purchase action provides redundant, overlapping proof of Your informed and voluntary waiver.

3.5 Geo-Detection and Applicability

The Company reserves the right to geo-detect Your location using IP address analysis, billing address, payment method country of origin, device locale settings, or any other available indicators to determine whether this Waiver Policy applies to Your transaction. If the Company determines that You are located in the EU, EEA, or UK, the mandatory checkbox mechanism will be applied automatically. The Company may also apply this mechanism to users in other jurisdictions with similar consumer withdrawal rights at its discretion.

If geo-detection is inconclusive, the Company reserves the right to apply the waiver mechanism as a precautionary measure or to request additional verification of Your location before processing the transaction.

4. Immediate Performance and Full Delivery

4.1 Instant Delivery

All Digital Purchases are delivered and made accessible to Your Account **immediately and automatically** upon successful processing of payment. There is no delay, staging period, or partial delivery. The purchased digital content — whether items, currency, subscription access, premium features, or any other digital product — is credited to or activated in Your Account within seconds of transaction completion.

4.2 Full Performance

The moment the Digital Purchase is delivered to or accessible in Your Account, the contract is **fully performed and consumed**. The digital content has been supplied in its entirety. There is no ongoing obligation of delivery, no partial performance, and no future installment to be provided (other than ongoing subscription access for the duration of the paid Billing Cycle, which itself constitutes continuous performance).

4.3 Irreversibility

Once performance has begun and delivery has occurred, the transaction is **irreversible**. The digital content cannot be "returned" in any meaningful sense, as it has been fully consumed, integrated into Your Account, and/or used within the Service environment. This irreversibility is a fundamental characteristic of digital content delivery that distinguishes it from physical goods and forms the basis of the statutory exception under Article 16(m).

5. Irrevocable Consequences of the Waiver

5.1 Permanent Loss of Withdrawal Rights

The moment You provide consent (via the mandatory checkbox and purchase action) and the Digital Purchase is delivered to or accessed in Your Account:

- (a) You **permanently and irrevocably lose** Your statutory right of withdrawal under Directive 2011/83/EU, the Consumer Contracts Regulations 2013, and any equivalent national legislation;
- (b) You have no right to cancel, withdraw from, or rescind the transaction based on the cooling-off period;
- (c) You have no right to request a refund based on the cooling-off period or change of mind;
- (d) The waiver cannot be reversed, revoked, or undone after delivery has occurred.

5.2 No-Refund Policy

Our strict No-Refund Policy, as detailed in the Terms and Conditions, applies in full to all Digital Purchases made by EU/UK consumers. **All sales are final, non-refundable, and non-exchangeable for any reason, including but not limited to:**

- (a) Buyer's remorse or change of mind;
- (b) Accidental purchase;
- (c) Dissatisfaction with the product, Service, or any aspect thereof;
- (d) Loss of access due to Account termination for violation of the Terms and Conditions, AUP, or any other policy;
- (e) Technical issues, server downtime, or service interruptions;
- (f) Changes, modifications, or discontinuation of digital content, features, or the Service;
- (g) Any other reason not constituting a non-waivable mandatory consumer right unrelated to withdrawal rights.

5.3 Non-Waivable Rights Preserved

Nothing in this Waiver Policy is intended to waive or limit any consumer rights that are non-waivable under applicable mandatory law (such as rights relating to defective or non-conforming digital content under Directive (EU) 2019/770 on Digital Content). However, the exercise of withdrawal rights under the Consumer Rights Directive is a **waivable right** when the conditions of Article 16(m) are met, and those conditions are satisfied for every Digital Purchase from REACT Studios Corp. as described in this Policy.

5.4 Chargebacks and Disputes

Any attempt to initiate a chargeback, payment dispute, reversal, or claim with Your bank, card issuer, payment processor, or any third party for a Digital Purchase that was lawfully delivered with Your express consent and waiver is a **material breach** of the Terms and Conditions and may be treated as **fraud**. Consequences include immediate Account termination, forfeiture of all digital assets, cost recovery, evidence submission, and pursuit of all available legal remedies, as described in full in the Terms and Conditions and Subscription Services Agreement.

6. Confirmation and Record-Keeping

6.1 Transaction Confirmation

Upon completion of each Digital Purchase, the Company will provide immediate confirmation via one or more of the following methods:

- (a) Email confirmation to the email address associated with Your Account;
- (b) In-Account transaction history and purchase receipt;
- (c) On-screen confirmation at the time of purchase.

6.2 Records Maintained

The Company maintains detailed, timestamped records of every transaction, including:

- (a) The specific Digital Purchase made and the amount charged;
- (b) The exact date and time of the transaction;
- (c) A timestamped record of Your checkbox consent and acknowledgment of the loss of withdrawal rights;
- (d) A timestamped record of Your click on the "Buy," "Subscribe," "Confirm," "Pay," or similar transactional button;
- (e) Your IP address, geo-location data, device information, and browser/platform data at the time of purchase;
- (f) Proof of immediate delivery and accessibility of the Digital Purchase in Your Account;
- (g) Evidence of Your usage or access of the Digital Purchase following delivery.

6.3 Use of Records in Disputes

These records will be compiled and submitted to payment processors, banks, card networks, arbitration bodies, consumer protection authorities, courts, or any other relevant entity to demonstrate full compliance with Article 16(m) and to contest any chargeback, dispute, refund request, or regulatory inquiry. In the vast majority of cases, this evidence is sufficient to demonstrate valid delivery, informed consent, and lawful waiver, resulting in disputes being resolved in the Company's favor.

7. Subscription-Specific Provisions

7.1 Subscription Withdrawal Waiver

For recurring Subscription purchases, the waiver of withdrawal rights applies separately and independently to each Billing Cycle. Each automatic renewal constitutes a new contract for the supply of digital content, and the withdrawal exception under Article 16(m) applies to each renewal because:

- (a) Your initial consent to immediate performance (provided at the time of original Subscription enrollment) remains in effect for all subsequent renewals;
- (b) Subscription Benefits are delivered and made accessible immediately at the start of each new Billing Cycle;
- (c) Each renewal constitutes full performance of the contract for that Billing Cycle.

7.2 Cancellation vs. Withdrawal

Canceling a Subscription (through the process described in the Subscription Services Agreement) is not the same as exercising a right of withdrawal. Cancellation prevents future renewals but does not entitle You to a refund for any current or past Billing Cycle where digital content has been delivered and the waiver has been validly obtained.

8. Regulatory Compliance

8.1 Good Faith Compliance

This Waiver Policy has been designed in good faith to comply fully with:

- (a) Directive 2011/83/EU on Consumer Rights (Article 16(m));
- (b) The Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013 (UK);
- (c) Directive (EU) 2019/770 on Digital Content and Digital Services;
- (d) All applicable national transpositions and implementing regulations within EU Member States;
- (e) Guidance issued by the European Commission, national consumer protection authorities, and relevant regulatory bodies.

8.2 Cooperation with Authorities

The Company will cooperate fully with any consumer protection authority, regulatory body, or competent court that requests information regarding the Company's compliance with consumer withdrawal rights laws. The Company's record-keeping practices (Section 6) are designed to facilitate such cooperation.

9. Modifications to This Waiver Policy

The Company reserves the right to update, modify, or replace this Waiver Policy at any time to reflect changes in applicable law, regulatory guidance, or Company practices. Material changes will be communicated via the Service or email at least thirty (30) calendar days prior to taking effect. Your continued use of the Service and completion of Digital Purchases after the effective date of any changes constitutes Your acceptance of the revised Waiver Policy.

10. Contact Us

If You have any questions about this Waiver Policy, Your withdrawal rights, or the consent and waiver process, please contact Us **before** making a purchase:

General Support: support@reactstudios.com **Site Operator:** david@reactstudios.com **Legal Inquiries:** legal@reactstudios.com **Help Center:** <https://support.reactstudios.com> **Mailing Address:** REACT Studios Corp., 701 Commerce St, 5th Floor, Dallas, TX 75202, United States

BY COMPLETING ANY DIGITAL PURCHASE, YOU IRREVOCABLY CONFIRM THAT YOU HAVE READ, FULLY UNDERSTOOD, AND UNCONDITIONALLY AGREE TO THIS WAIVER POLICY, INCLUDING YOUR EXPRESS CONSENT TO IMMEDIATE PERFORMANCE AND YOUR ACKNOWLEDGMENT OF THE PERMANENT LOSS OF YOUR STATUTORY RIGHT OF WITHDRAWAL.

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